HARBOURLIGHT MEDIA

Clearance Guide: Appeal to Under-18s

Document Guide 05 | Issue 3 | Owner: Clearance | Review cycle: every twelve months

1. What this guide covers

This guide covers copy that is likely to appeal particularly to people under 18. It is used by the Clearance Executive who reviews the copy, from the first read until the issue is settled, and by Agency Liaisons advising agencies before they submit.

It arises most often in less healthy food, alcohol and betting and gaming copy. No restricted category may aim its copy at under-18s.

This guide is about who the copy speaks to. Copy that pressures viewers to gamble or promises winning is a gambling inducement, and the Gambling Inducements guide covers it.

Whether a campaign's spots may be transmitted is a separate question, settled by the category's own code. This guide is about the copy.

2. How it usually shows up

- a cartoon mascot, animated characters, video-game style graphics or a playground-style jingle
- toy giveaways and collectable stickers
- performers who are, or look, young - for alcohol and betting, anyone who looks under 25
- sports personalities and celebrities with a strong following among young fans
- school settings, and children shown enjoying the product

3. What the executive checks

For a possible appeal to under-18s, the Clearance Executive checks, in this order:

1. List every element likely to appeal to under-18s: characters, graphics, music, giveaways, settings and performers.
2. For alcohol and betting, check every performer in a significant role is, and looks, 25 or over, and ask for their ages.
3. Judge the copy as a whole: whether its treatment, not only one element, is aimed at a young audience.
4. Check that any sports personality or celebrity does not have a strong following among under-18s.
5. Keep this apart from scheduling: where the spots are booked cannot make such copy acceptable.

4. Evidence to ask for

- the performers' ages for alcohol and betting copy
- the storyboard showing how each scene plays
- for a celebrity or a sports personality, the profile of their following

5. When the copy can be cleared

The copy can be cleared once nothing in it has particular appeal to under-18s and, for alcohol and betting, every performer in a significant role is, and looks, 25 or over. The usual amendment is to remove the youth-facing element or to recast with an older performer.

6. What the agency should do

Before submitting, and when answering a query, the agency should:

- Leave out cartoons, toys, collectables and playground settings for these categories.
- Cast performers who are, and look, 25 or over for alcohol and betting.
- Send the performers' ages with the copy.
- Check a celebrity's following before building the copy around them.

7. When to ask for a legal review

Ask for a legal review when the agency argues that the treatment is aimed at adults, or when a celebrity's appeal to young fans is disputed.

The Legal Adviser records the review on the campaign, and its view carries more weight than any other note.

8. Recording the outcome

The outcome is recorded in an update on the campaign: the copy amended, the evidence accepted, or the copy cleared as submitted.

The assessment then recommends one of the decisions open for the campaign, and a Clearance Controller decides, as the Advertising Clearance Policy describes. Copy that cannot be cleared is rejected, whatever its spots' results.